Ateneo de Zamboanga University

Zamboanga City

Policy on Sexual Harassment*

In accordance with the Ateneo tradition of respecting the dignity of the human person and the provisions of Republic Act No. 7722, otherwise known as the Higher Education Act of 1994 as well as its implementing Rules and Regulations, and in relation to expressed provisions of RA No. 7877 otherwise known as the Anti-Sexual Harassment Act of 1995, the Ateneo de Zamboanga University (ADZU) adopts the following policies and standards.

I. Definition. The ADZU adopts the definition of sexual harassment according the Civil Service Commission (CSC Resolution No. 01-0940, 21 May 2001). Sexual harassment refers to "an act, or series of acts involving any unwelcome sexual advance, request or demand of sexual favor, or other verbal or physical behavior of a sexual nature committed by … an employee or official in a work-related or training or education-related environment of the person complained of."

Authority, influence and moral ascendancy are no longer indispensable elements of the administrative offense of sexual harassment (CSC Resolution No. 01-0940, 21 May 2001). Hence, even a subordinate may commit sexual harassment against his/her superior under the new rules. In this sense, students may commit sexual harassment against their peers and their teachers.

II. Examples of Sexually Harassing Behaviors

The following are examples of sexually harassing behaviors. Actual behaviors, however, are not limited to these examples:

1. Threats or insinuations that a person's employment, wages, academic grade, promotional opportunities, classroom or work assignments or other conditions of employment and/or academic life may be adversely affected by not submitting to sexual advances.
2. Unwelcome verbal expressions, sexual innuendoes and comments, including comments on a person's body, dress, appearance or sexual activities; lewd humor or jokes about sex or females/males in general; pestering a person for dates, whether in person or indirectly by mail, telephone, internet, SMS (text) or other telecommunication devices on or off campus.
3. Unwelcome sexually suggestive sounds or gestures, including but not limited to, throwing kisses or whistling.

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* The following policy is adopted from the Memorandum Circular of the Civil Service Commission and the Sexual Harassment Policies of the Ateneo de Manila University, Bowling Green State University, Bowling Green, OH and Lee College, Baytown, Texas.

4. Sexually suggestive objects, pictures, videotapes, electronic mail, audio recordings or literature unrelated to educational purposes, placed in the work or study area that may embarrass or offend individuals.
5. Unwelcome, unsolicited or inappropriate touching, patting, or pinching including giving unrequested neck or shoulder massages.
6. Intimidating or demeaning remarks or behaviors, which may not be sexually motivated, but are clearly based on stereotypes of gender.
7. Other sexually offensive acts including public display of affection and downloading of pornographic materials (all of which are intended to be seen by a targeted third party) in the workplace.

III. Classification of Acts of Sexual Harassment

Sexual harassment is classified as grave, less grave and light offenses.

A. Grave Offenses shall include but are not limited to:

1. Unwanted touching of private parts of the body (genitalia, buttocks, and breast)
2. Sexual assault
3. Malicious touching in other parts except in those mentioned in No. 1.
4. Requesting for sexual favor in exchange for employment, promotion, travel, favorable working conditions or assignments, a passing grade, the granting of honors or scholarship, or the grant of benefits or payment of a stipend or allowances
5. Other analogous cases

B. Less Grave Offenses shall include but are not limited to:

1. Unwanted touching or brushing against a victim's body
2. Pinching not falling under grave offenses
3. Derogatory or degrading remarks and innuendos directed towards the members of one's sex or one's sexual orientation or used to describe a person
4. Verbal abuse or threats with sexual overtones
5. Other analogous cases

C. The following shall be considered Light Offenses:

1. Surreptitiously looking or stealing a look at a person's private part or worn undergarments
2. Telling sexist/smutty jokes or sending these through text messaging, e-mail, or other similar means
3. Malicious leering or ogling
4. Display of sexually offensive pictures, materials or graffiti
5. Downloading of pornographic materials (all of which are intended to be seen by a targeted third party) in the workplace.
6. Unwelcome inquiries or comments about a person's sex life

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7. Unwelcome sexual flirtation, advances, propositions
8. Making offensive hand or body gestures
9. Persistent unwanted attention with sexual overtones
10. Unwelcome calls through the telephone or other forms of communication with sexual overtones causing discomfort, embarrassment, offense or insult to the receiver
11. Other analogous cases

IV. Penalties

Frequency	LIGHT OFFENSES	LESS GRAVE OFFENSES	GRAVE OFFENSES
1st Offense	Reprimand	Suspension not exceeding 30 days	Dismissal
2nd Offense	Suspension not exceeding 30 days	Dismissal	
3rd Offense	Dismissal		

V. Application, Composition and Responsibility

1. On a university-wide basis, the Committee on Decorum and Investigation (CODI) is responsible for the coordination and implementation of ADZU's sexual harassment policy. The committee will serve as the resource with regard to all matters of this nature. The Committee will receive and refer sexual harassment complaints to the proper sub-committee for investigation. Cases that cannot be handled by the sub-committee (e.g., complaints against top administrators) will be handled by the CODI. The members of the CODI are:

   The College Faculty Association President
   President of the College Student Council
   President of the Staff Association
   The Academic Vice President
   The High School Principal
   The Graduate School Dean
   The Assistant to the President for Formation as Chair

   The Committee shall report to the President.

2. There will be two sub-committees, one for Basic Education and one for Higher Education.

   In the Basic Education Unit, the members of the sub-committee are:
   a. President, Student Council or the equivalent

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b. President of the Faculty Association
c. President of the Staff Association
d. Assistant Principal as Chair
e. A Senior faculty member

In the Higher Education Unit, the members of the sub-committee are:

a. President, Student Council or the equivalent
b. President of the Faculty Association
c. President of the Staff Association
d. One of the College Deans or the Assistant Dean of Graduate School – as Chair
e. A Senior* Faculty member

3. Complaints involving central services staff will be handled by the committee under the unit from which the complaint originates. If there is a need to, the CODI may create an ad hoc committee to handle the case.

4. Upon referral of a case by the CODI, the proper sub-committee will investigate, hear the case and will recommend further action to the Principal, Academic Vice President, the Graduate School Dean or the HRADO Director whichever is the unit head concerned.

5. Each dean, principal, director, department chair, and administrative head of an operational unit is responsible for the dissemination and implementation of this policy within his or her area of responsibility. Persons at this level are also responsible for referring reported incidents of sexual harassment to the CODI.

6. It is expected that each faculty member, administrative staff member and classified staff member will ensure adherence to this policy within his or her area of responsibility. Such efforts are largely a matter of good faith.

7. It is the responsibility of all members of the University community to discourage sexual harassment, report such incidents, and cooperate in any investigation that might result.

The University has a legal responsibility to investigate any complaint to its satisfaction. Those who report incidents that University officials determine constitute sexual harassment under this policy should understand that their allegations may be investigated on behalf of all University students and employees whether or not they personally choose to pursue the complaint.

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*From the Rank of Associate Professor upward - College
*From the Rank of Senior Teacher upward – H.S./G.S.

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VI. No Retaliation

No person who seeks advice concerning a sexual harassment matter, files a sexual harassment compliant, or serves as a witness or panel member in the investigation of a sexual harassment complaint may be subject to restraint, interference, coercion, or reprisal for action taken in good faith. Disciplinary action may be taken against any person retaliating in violation of this policy, and such intimidation or interference should be reported immediately to the CODI.

VII. Malicious, False Accusations

A complainant whose allegations are found to be both false and wrought with malicious intent will be subject to disciplinary action which, for employees, may include, but is not limited to, written warning, demotion, transfer, suspension, or termination from the university. Disciplinary actions for students making malicious false accusations include, but are not limited to, written warning, removal from class, or expulsion from the university.

VIII. Procedure

Complaint

1. The complaint must be in writing, subscribed and sworn to by the complainant. It must contain the following:

   i. the full name of the complainant;
   ii. the full name of the respondent;
   iii. a specification of the charge or charges;
   iv. a brief statement of the relevant and material facts

2. If the complaint does not comply with the foregoing, the Chair of the sub-committee shall require the complainant to comply in writing within five (5) days from receipt of the notice; otherwise, the complaint shall be dismissed.

3. The complainant may submit any evidence he or she possesses, including affidavits of witnesses and pertinent documents.

4. The sub-committee may require the complainant to specify the acts complained of as sexual harassment, in writing, within five (5) days from receipt of the notice; otherwise, the complaint shall be dismissed.

5. A withdrawal of the Complaint made or filed at any stage of the proceedings shall not preclude the sub-committee from proceeding with the investigation of the case.

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Answer

1. The respondent shall file his or her answer personally or through legal counsel within ten (10) days from the receipt of the Complaint.

2. The answer shall be in writing, subscribed and sworn to by the respondent, and a copy shall be furnished the complainant. No particular form is required but it is sufficient if the answer contains a specific admission or denial of the charge or charges and a statement of the relevant facts constituting the defense of the respondent.

3. The respondent may submit any evidence he or she possesses, including affidavits of witnesses and pertinent documents.

4. Failure of the respondent to file an answer within the time specified in these Rules or to appear in the investigation shall be construed as a waiver of the right to present evidence in his or her behalf. On the basis of pleadings and evidence submitted, the sub-committee shall submit its report and recommendation to the CODI which after the final review will submit its recommendations to the unit head concerned.

Reply

The Complainant may file a reply within five (5) days from receipt of the answer.

Preventive Suspension

1. The Unit head may suspend any respondent for not more than thirty (30) days pending an investigation, if there are strong reasons to believe that the respondent is guilty of charges which warrant his or her dismissal from the service.

2. When the case against the respondent who is under preventive suspension has not been decided within thirty (30) days after the date of suspension of the respondent, he or she may be reinstated in the service or the preventive suspension may be extended subject to the payment of salaries during such extension. If the delay in the disposition of the case is due to the fault, negligence or petition of the respondent, the period of the delay shall not be counted in computing the period of suspension.

Hearing

1. After all the pleadings have been submitted, the sub-committee shall conduct a hearing not earlier than five (5) days nor later than ten (10) days from the date of receipt of the answer or the reply, if any, and shall terminate such hearing within thirty (30) days from the filing of the charges. However, the Committee may extend the period of hearing if it deems necessary. Any member of the

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Committee may propound questions to the parties and their witnesses for clarification.

2. Any party may avail himself/herself of the assistance of a lawyer if he or she so desires.

3. No postponement shall be granted except in meritorious cases.

4. The parties may be required to submit their respective memoranda within ten (10) days after the hearing of the case.

Report and Recommendation

The Sub-Committee shall submit its report and recommendation thru the CODI to the Unit head, whose decision shall be executory upon expiration of the period to appeal if no motion for reconsideration is filed or no appeal is made.

Administrative Penalty

Sexual harassment shall be punishable with a reprimand, suspension without pay for a maximum period of six (6) months, or dismissal, taking into consideration the seriousness of the offense in the light of the facts and circumstances of the case.

Motion for Reconsideration

Either party may file a motion for reconsideration with the Unit head within ten (10) days from receipt of the copy of the decision on any of the following grounds:

1. New evidence has been discovered which materially affects the decision;

2. The decision is not supported by the evidence on record;

3. The decision is contrary to law or based on a misappreciation of the facts.

Appeal. The decision of the Unit head may be appealed within ten (10) days to the President of the Ateneo de Zamboanga University, whose decision shall be final.

Administrative sanctions shall not be a bar to prosecution in the proper courts for unlawful acts of sexual harassment.

Confidentiality of Proceedings

The proceedings of all sexual harassment cases shall be private and confidential.

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